

Safe-Seat Washington

How often is a Washingtonian's legislative or congressional general election an actual contest? (Observed, 2016–2024)

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AI-assisted drafting and analysis review. All figures are reproducible from public-record data and from the open-source scripts cited below, including `scripts/verify_safe_seat.py`, which re-derives every count in this paper from raw precinct returns. The paper source, code, and data-acquisition recipe are public at <https://github.com/skirby359/who-decides>. Contact: kirby@tikorconsulting.com.

Companion to "[Who Decides Washington State?](#)" and the [electoral-health white paper](#) (Finding 2). Where the lead paper showed who turns out, this one asks whether their vote in the general is a real choice. Figures from `scripts/diag_safe_seat_wa.py`, computed from observed precinct results (`precinct_results`), not the forecast model.

Abstract

Claims that most legislative seats are "safe" usually rest on a projected margin, which invites the obvious rebuttal that the model is wrong. This paper discards the projection and counts the observed general-election result of every partisan legislative and congressional seat on Washington's ballot from 2016 through 2024, then repeats the count in three comparison states. The unit is the seat a voter actually marks. Washington's top-two primary allows a general election to offer no major-party choice at all — either uncontested, or two candidates of the same party — and those cases are counted separately from merely lopsided contests. In a typical Washington cycle roughly 85% of legislative and congressional seats are decided before November. In 2024, 113 of 133 partisan seats were non-competitive and 46 of them, more than a third of the ballot, offered voters no Democratic-versus-Republican choice whatsoever. The pattern is stable across a decade, denting only in the 2018 wave year. It is not a Washington peculiarity: in the lower chamber of all four states examined, 89–94% of seats were non-competitive on the actual ballot. Nor is it a one-party artifact, with Washington's safe seats splitting 69 Democratic to 44 Republican. The result is insensitive to the competitiveness threshold, holding between 79% and 98% across cuts from 5 to 15 points. Where the general is foregone, the binding decision moves to an August primary that drew about half the general's voters. The paper counts contests and margins, and makes no claim about which party benefits.

Keywords: electoral competition; safe seats; uncontested elections; top-two primary; state legislatures; primary elections; redistricting; Washington; New York; Texas; Idaho.

The question, and why "observed" matters

The standard "most seats are safe" claim usually rests on a *projection* — a model's predicted margin. That invites the obvious rebuttal: *your model could be wrong*. So this paper throws the projection out and counts the **actual** general-election result of every partisan legislative and congressional seat on Washington's ballot, 2016–2024. The unit is the **seat** (each State Representative position, each State Senator race up that cycle, each U.S. House race) — the thing a voter actually marks. Washington's **top-two primary** sharpens the question. Because the two highest primary finishers advance regardless of party, a general can be (a) **uncontested** (one candidate), (b) **same-party** — two Democrats or two Republicans, so the general offers *no major-party choice at all* — or (c) a real **D-vs-R** contest, which is then banded by two-party margin (Tossup <5 / Lean 5–10 / Likely 10–20 / Solid ≥20). A seat is **non-competitive** if it is uncontested, same-party, or D-vs-R by ≥10 points.

What the data shows

Observed competitiveness of partisan legislative + congressional seats, by even-year general:

Year	Seats	Uncontested	Same-party	Tossup	Lean	Likely	Solid	Non-competitive
2016	107	20	27	4	6	18	32	90.7%
2018	100	8	12	16	9	19	36	75.0%

Year	Seats	Uncontested	Same-party	Tossup	Lean	Likely	Solid	Non-competitive
2020	132	14	21	10	11	24	52	84.1%
2022	132	23	23	9	8	26	43	87.1%
2024	133	23	23	10	10	21	46	85.0%

- **Defensible claim.** In a typical Washington cycle, **roughly 85% of legislative and congressional seats are decided before November**. In 2024, of 133 partisan seats only **20 (15%) were genuine contests** (within 10 points); **113 were non-competitive**, and **46 of them — more than a third of all seats — offered voters no D-vs-R choice whatsoever** (23 uncontested + 23 same-party top-two generals). The pattern is stable across a decade (84–91%), denting **only** in the 2018 blue-wave year, when competition briefly rose (non-competitive fell to 75%). This is a counting result on real ballots — it does not depend on any model.
- **It is not a one-party artifact.** Among 2024's safe seats, **69 lean Democratic and 44 lean Republican** — safe seats are a bipartisan feature of the map, the expected product of a geographically sorted electorate, not a gerrymander story.
- **But the ratio doesn't quite match the vote.** "Not one-party" is a claim about *direction*. Whether safe seats split the way the *statewide vote* does is a separate question, and they don't quite. Measured against each state's 2024 presidential two-party vote (`scripts/diag_safe_seat_party_ratio.py` , lower chamber for cross-state comparability), safe seats over-represent whichever party runs the state, and the gap widens the more lopsided the state gets: WA's House safe seats are 62.1% Democratic against a 59.5% Democratic presidential vote (+2.6 points — and the 69–44 all-seats split above is +1.6), essentially a match, which is what geographic sorting rather than distortion looks like. But Texas safe seats are 63.8% Republican against 56.9% presidential (+6.9), and Idaho's are 87.7% Republican against 68.8% (+18.9). That widening gap is a packing signature — the minority party's voters concentrated into a few districts, so it wins a smaller share of safe *seats* than of the *statewide vote*. Whether that reflects deliberate line-drawing or the minority's own geographic clustering is exactly what this cut cannot say (Chen & Rodden 2013 is the standing argument that urban concentration produces such bias without anyone drawing it in). A first partisan-symmetry check does argue against an *extreme* gerrymander: the efficiency gap on the presidential vote by district (`scripts/diag_efficiency_gap.py`) is small in WA (~2–3%, near-symmetric) and, while modestly larger in the lopsided states (Idaho ~3%, Texas ~6% on one measure — all from the minority party's urban packing), stays at or under the ~8% level Stephanopoulos & McGhee (2015) flag as a concern, so no state's map is an efficiency-gap outlier. Pinning down *intent* rather than asymmetry would take a full map-simulation (ensemble) test — a separate question from this paper's.
- **The model that the cross-state work relies on is validated here.** This project's forecast independently bands **53 of 59 WA districts as ≥10-pt safe (90%)** for 2026 — within a few points of the **85%** measured on actual 2024 results. The projection and the observed record agree.

The operative contest is the lower-turnout primary. When the November general is foregone, the binding decision is the August top-two primary — which drew only **~51% of the general's voters in 2024** (median across seats; ~62% in 2022). So in a safe seat the effective choice is made by an electorate roughly **half** the size of the one that shows up to ratify it in November — and, per the lead paper, an off-cycle *local* primary electorate is smaller and older still.

The four-state map — observed

Running the **same observed count** against each state's **lower chamber** — the one body fully up every cycle in all four states, so the count is complete and apples-to-apples (upper chambers stagger in WA/TX; `scripts/diag_safe_seat_states.py`). Most recent loaded general: WA/TX/ID 2024; NY 2022.

State (chamber)	Seats	No major-party choice	Competitive (<10pt)	Non-competitive	Safe D / R	(model proj.)
WA House	98	39	11	88.8%	54 / 33	90%
NY Assembly	149	48	17	88.6%	89 / 43	86%
TX House*	150	61	9	94.0%	51 / 90	81%

State (chamber)	Seats	No major-party choice	Competitive (<10pt)	Non-competitive	Safe D / R	(model proj.)
ID House	70	20	5	92.9%	8 / 57	92%

- **Defensible claim.** Safe-seat dominance is **not a Washington peculiarity** — in every one of the four states **89–94% of lower-chamber seats were non-competitive** on the actual ballot, blue and red alike, and **a third or more offered no D-vs-R choice at all** (WA 39, NY 48, TX 61, ID 20). And the observed counts **track the model's independent projection** (NY 88.6 observed vs 86 projected; ID 92.9 vs 92; WA 88.8 vs 90) — the projection the cross-state work leans on is validated against real ballots. Safe seats favor the locally dominant party (WA/NY lean-D, TX/ID lean-R) — partisan geography, symmetric: lopsided seats exist on both sides everywhere.
- **TX is the most foreclosed — and the contest gap is worse than the map.** Completed to all 150 House seats (Appendix F), **94% were non-competitive** and **61 (41%) had no major-party opponent**. Strikingly, that 94% *exceeds* what the district lean predicts: the 2024 **presidential** result bands only **84%** of TX House districts as ≥10-pt safe (close to the model's 81% projection), yet **94%** of the actual House *races* were foregone — Texas parties decline to field candidates even in seats their own presidential numbers say are winnable. Observed contestation is worse than the partisan geography alone.

* Texas required a backfill of 54 uncontested seats absent from the canvass returns; the construction and its verification are in Appendix F. WA/NY/ID lower-chamber coverage was already complete. This table is lower-chamber only for comparability; WA's all-seats figure including congressional and both House positions, and the 2016–2024 trend, are above.

Why it matters

The lead paper showed the off-year electorate is half-sized and old. This paper shows that even in the high-turnout even-year general, **most legislative and congressional seats are not actually in play** — so the real decision migrates to the **primary**, a round that draws about half the voters. Stack the two: a large share of Washington's representation is effectively chosen by **small, old, primary electorates**, with the November general a ratification. The reforms implied are the familiar pair — **on-cycle timing** (lead paper) to enlarge and rebalance the deciding electorate, and primary design (top-four / ranked-choice experiments) to put real choice back into the round that actually decides.

What this paper does not claim, and limits

- **Lopsided is not illegitimate.** A 40-point margin can simply mean the voters there genuinely agree. The finding is strongest for the **46 no-choice seats**, where the general offered no cross-party option at all, and weakest as a "democratic failure" reading for merely-lopsided Solid seats. Appendix A states this objection at full strength.
- **No partisan-consequence claim.** This paper counts contests and margins, not who benefits. That question needs individual party-of-record — the follow-on study.
- **No claim about intent.** The packing signature in the lopsided states is an observation about the seat/vote ratio, not evidence that anyone drew it deliberately; distinguishing the two requires ensemble simulation this paper does not run.
- **Margins are two-party.** Third-party and independent votes are excluded from the margin, so a seat with a lone minor-party challenger counts as offering no major-party choice.
- **New York is a cycle behind.** Its most recent loaded general is 2022, not 2024, and its pre-2022 presidential data cannot be matched to post-redistricting Assembly lines, so NY is absent from the contest-gap test in Appendix E.

Appendices

Appendix A — The objections, in full

1. Lopsided seats represent their voters; this is agreement, not foreclosure. A Solid-D Seattle seat and a Solid-R rural seat each *represent* the electorate that produced them. On this reading a 40-point margin is the healthy null — outcomes

reflecting voter choice — not a closed shop, and the paper's headline is a category error. This is the strongest objection and it is partly correct. It is why the paper separates the **46 no-choice seats** from the merely lopsided ones: where a general offered no cross-party option at all, no amount of voter agreement explains the absence of an alternative to agree or disagree with. The claim is strongest there and weakest for Solid contested seats, and the paper is written to make that distinction visible rather than to blur it into a single number.

2. "Non-competitive" is a knob you chose. The 10-point cutoff is a judgment call, and a critic can reasonably suspect it was selected to produce a striking number. Appendix E tests the whole plausible range: the headline moves between 79% and 98% across cuts from 15 points down to 5, and never approaches "competitive" at any setting. More decisively, the uncontested-plus-same-party count — a third or more of every chamber examined — is **threshold-free**. It is a headcount of ballots that offered no choice, and no cutoff enters it.

3. Same-party generals are an artifact of Washington's top-two primary. True as stated, and it would undercut cross-state comparison if left unhandled. In states with party primaries the analogue is a seat with no major-party filer. The four-state table folds both into a single comparable bucket — *no major-party choice* — so the counts are apples-to-apples. Washington voters in a same-party general and Texas voters in an unopposed race face the same ballot: no cross-party option.

4. The safe-seat split proves a gerrymander. It does not, and the paper declines the claim. Washington's safe seats split 69 D to 44 R against a 59.5% Democratic presidential vote — a near-match, which is what geographic sorting looks like. The lopsided states show a wider seat/vote gap, but Chen & Rodden (2013) is the standing demonstration that urban concentration produces exactly that bias with no one drawing it, and every state's efficiency gap sits at or under the ~8% level Stephanopoulos & McGhee (2015) treat as a warning sign. Intent is a question for ensemble simulation, not for this design.

5. The Texas number rests on a backfill you constructed. Fair, and it is the one place this paper adds rows rather than counting them. The 54 absent districts are uncontested by construction — the canvass publishes no precinct tally for an unopposed race — and were cross-checked against the press-reported unopposed list. Appendix F gives the full construction. Note also that excluding Texas entirely would not change the paper's conclusion; it would remove the most extreme case.

Appendix B — Data access and provenance

- **What the figures are computed from.** Certified precinct-level general and primary returns, aggregated to the seat: `precinct_results` summed per candidate per seat, with party from `candidates.party_normalized`. These are **published aggregate election results**, not individual records — this paper touches no voter file and no personal data, which is why it carries no privacy appendix of the kind the turnout and donor papers require.
- **Sources by state.** Washington: Secretary of State precinct-level results. New York: State Board of Elections. Idaho: Secretary of State. Texas: Legislative Council canvass-grade VTD returns, plus the on-disk TLC r206 report (`planh2316_r206_election24g.xls`) used for the Appendix F backfill.
- **Coverage.** WA/NY/ID lower-chamber coverage is complete. Texas is complete only after the Appendix F backfill; before it, the warehouse held 96 of 150 House districts. Most recent loaded general is 2024 for WA/TX/ID and 2022 for NY.
- **What is released.** Seat-level counts and shares only. Full provenance and a no-AI reproduction recipe — every source, access path, and the exact script behind each figure — is in [Data Sources & Reproducibility](#).

Appendix C — Methods

- **Source and unit.** `precinct_results` summed per candidate per seat; party from `candidates.party_normalized` (D = %democrat%, R = %republican% / %gop%), write-ins excluded; district parsed from `race_name`. Two-party margin = $|D - R| / (D + R)$ among the major-party vote. The unit throughout is the **seat**, the thing a voter marks, not the district.
- **Seat universe.** State Representative Pos. 1 and 2 (every cycle), State Senator (staggered — only districts up that cycle, so the senate seat set varies by year), U.S. Representative. Even-year generals only; Washington holds no legislative or congressional races in odd years.
- **Classification.** A seat is *uncontested* with one candidate, *same-party* when both advancing candidates share a party, and otherwise banded by two-party margin: Tossup <5, Lean 5–10, Likely 10–20, Solid ≥20. **Non-competitive** = uncontested, same-party, or margin ≥10. Uncontested and same-party together form the *no major-party choice* bucket

used for cross-state comparison.

- **Primary/general ratio.** Each general seat is matched to its same-office, same-district August primary; "turnout" is total votes cast in that seat's race, and the reported figure is the median ratio across seats.
- **Third parties.** Excluded from the margin. A lone third-party challenger does not make a seat contested for the no-major-party-choice count.
- **Reproduction.** `scripts/verify_safe_seat.py` re-derives every count above from raw precinct returns with from-scratch SQL, without importing the diagnostic scripts. The build-side scripts are `diag_safe_seat_wa.py` (WA by year), `diag_safe_seat_states.py` (four-state), `diag_tx_safe_seat_backfill.py` (Appendix F), `diag_safe_seat_robustness.py` (Appendix E), `diag_safe_seat_party_ratio.py` and `diag_efficiency_gap.py` (the seat/vote and symmetry checks).

Appendix D — Related work

The decline of competitive general elections and the resulting primacy of the primary are long-documented; the contribution here is the *observed*, cross-state rate — how often a general is an actual contest — measured directly from 2016–2024 returns rather than modeled. It sits in these literatures:

- **The primary as the real election under one-party dominance.** Key, *Southern Politics in State and Nation* (Knopf, 1949) — in a one-party jurisdiction the dominant party's primary is decisive and the general ratifies it. Hirano & Snyder, *Primary Elections in the United States* (Cambridge, 2019), doi:10.1017/9781139946537 — the modern national treatment. This paper quantifies how much of Washington, and three comparison states, now works this way.
- **The decline of competition in general elections.** Abramowitz, Alexander & Gunning, "Incumbency, Redistricting, and the Decline of Competition in U.S. House Elections," *Journal of Politics* 68(1) (2006): 75–88, doi:10.1111/j.1468-2508.2006.00371.x; FairVote, *Monopoly Politics* (recurring) — the safe-seat prevalence literature, which this paper measures at the state-legislative level and on observed rather than projected margins.
- **Uncontested seats as their own phenomenon.** Squire, "Uncontested Seats in State Legislative Elections," *Legislative Studies Quarterly* 25(1) (2000): 131–146 — the antecedent for treating no-major-party-choice races as a distinct category rather than as extreme margins, which is the distinction Appendix A leans on. Burden & Snyder, "Explaining Uncontested Seats in Congress and State Legislatures," *American Politics Research* 49(3) (2021): 247–258, doi:10.1177/1532673X20960565 — on why parties decline to field candidates, the mechanism behind Appendix E's contest gap.
- **Political geography versus intentional gerrymandering.** Chen & Rodden, "Unintentional Gerrymandering: Political Geography and Electoral Bias in Legislatures," *Quarterly Journal of Political Science* 8(3) (2013): 239–269 — urban concentration produces seat/vote bias without deliberate line-drawing, the null this paper's packing observation cannot reject. Stephanopoulos & McGhee, "Partisan Gerrymandering and the Efficiency Gap," *University of Chicago Law Review* 82 (2015): 831–900 — the source of the ~8% threshold used as the symmetry benchmark.
- **Off-cycle timing and who is left deciding.** Anzia, *Timing and Turnout: How Off-Cycle Elections Favor Organized Groups* (Univ. of Chicago Press, 2014) — the companion mechanism: when the general is a foregone conclusion, low-salience contests decide representation.
- **Top-two and primary reform.** McGhee & Shor, "Has the Top Two Primary Elected More Moderates?" *Perspectives on Politics* 15(4) (2017): 1053–1066, doi:10.1017/S1537592717002158 — Washington's top-two system is the institutional backdrop for these counts, and bears on whether the reform restores general-election competition. On these data it largely does not.

Appendix E — Robustness

`scripts/diag_safe_seat_robustness.py`.

The threshold doesn't matter. "Non-competitive" uses a 10-pt margin cut; the headline is flat across the whole plausible range, because the no-major-choice seats (a third or more of every chamber) are non-competitive at *any* threshold and only the contested seats move:

Lower chamber	≥ 5pt	≥ 8pt	≥ 10pt	≥ 12pt	≥ 15pt
WA House	95.9%	91.8%	88.8%	80.6%	78.6%
NY Assembly	94.6%	92.6%	88.6%	85.9%	82.6%

Lower chamber	≥ 5pt	≥ 8pt	≥ 10pt	≥ 12pt	≥ 15pt
TX House	98.0%	96.0%	94.0%	91.3%	86.0%
ID House	95.7%	92.9%	92.9%	91.4%	90.0%

Even at a stringent **15-point** cut, **79–90%** of seats are non-competitive; at a loose 5-point cut, 95–98%. There is no threshold at which these chambers look competitive.

The contest gap — parties leave winnable seats on the table. Comparing each chamber's *actual-race* non-competitive share to the share of its districts that are ≥10-pt safe by **2024 presidential lean** (the partisan geography), where matched-boundary presidential results exist:

	Actual-race non-comp	Presidential-lean safe	Gap
WA House	88.8%	79.6%	+ 9.2 pp
TX House	94.0%	84.0%	+ 10.0 pp
ID House	92.9%	94.3%	– 1.4 pp

In the two states with genuine partisan diversity (WA, TX), actual contestation is ~10 points *worse* than the map predicts — parties decline to field candidates even where the presidential numbers say the seat is winnable. In deep-one-party **Idaho** the gap vanishes (slightly negative): the districts are so lopsided presidentially that contestation cannot lag the map. So the "foregone-contest" pathology is **strongest where competition is actually possible** — which is the more troubling reading. (NY can't be tested here: its loaded presidential data ends in 2020, pre-2022 redistricting, so it can't be matched to the 2022 Assembly lines.)

Appendix F — The Texas backfill

Texas is the one state where this paper adds rows rather than only counting them, so the construction is set out in full.

The problem. The Texas Legislative Council's canvass-grade VTD returns (`data/raw/tx/.../2024_General_Election_Returns.csv`) omit uncontested races: when a seat is unopposed no precinct tally is published. The warehouse therefore carried only **96 of 150** TX House districts, and the missing 54 were missing *because* they were uncontested — exactly the category this paper counts. Left alone, the omission would have biased Texas toward looking more competitive than it is, by dropping its least competitive seats.

The construction. The 54 absent districts are backfilled as *no major-party choice*, with holding party assigned from each district's 2024 presidential lean using the on-disk TLC r206 report (`planh2316_r206_election24g.xls` , Sheet2: per-House-district Harris-D in column 3, Trump-R in column 11, 150 rows). Script: `scripts/diag_tx_safe_seat_backfill.py` . The notarized results database was not mutated.

The verification. The missing set was cross-checked against the press-reported 2024 unopposed list — HD 35, 36, 38, 40, 42, 49, 51, 75, 78, 79, 90, 92, 95 (D) and 81 (R), among others — and every one falls in the absent set, as it must if absence indicates non-contestation.

What it changes. With the backfill Texas reads 150 seats, 94.0% non-competitive, 61 with no major-party opponent. Without it, on the 96 contested-skewed districts alone, Texas would appear far more competitive than it is. The backfill is therefore load-bearing for the Texas row specifically — and for nothing else in the paper. Readers who reject it should read the four-state table as three states plus a lower bound.

End note — data, reproduction, and series

Reproduction, in dependency order:


```

# Observed WA competitiveness, by year (the headline table):
python scripts/diag_safe_seat_wa.py

# Four-state lower-chamber count:
python scripts/diag_safe_seat_states.py
python scripts/diag_tx_safe_seat_backfill.py      # Appendix F – completes TX to 150

# Robustness and symmetry:
python scripts/diag_safe_seat_robustness.py      # Appendix E threshold + contest gap
python scripts/diag_safe_seat_party_ratio.py     # seat/vote ratio vs presidential
python scripts/diag_efficiency_gap.py           # partisan-symmetry check

# Independent re-derivation of every count above (from-scratch SQL):
python scripts/verify_safe_seat.py

```

All inputs are published election returns. See [data-sources-and-reproducibility.md](#) for the full source ledger, and [publication-checklist.md](#) for the verification ledger of expected values.

This is the companion to the electoral-health series' lead paper: [who-decides-washington.md](#) (the gray off-year electorate), with [who-decides-new-york.md](#) and [who-decides-idaho.md](#) (party-resolved electorates), [donor-class-and-the-electorate.md](#) (who funds them), and [cross-state-fec-money.md](#) (the four-state money layer).